

IN THE SUPREME COURT OF INDIA
CIVIL ORIGINAL JURISDICTION

WRIT PETITION (CIVIL) NO. 645 OF 2022

(UNDER ARTICLE 32 OF THE CONSTITUTION OF INDIA)

WITH

INTERLOCUTORY APPLICATION NO. 130554/2022

(APPLICATION SEEKING DIRECTION OF THIS HON'BLE COURT IN COMPLIANCE OF THE
ORDER DATED 26.08.2022)

WITH

INTERLOCUTORY APPLICATION NO. 13659/2023

(APPLICATION FOR INTERVENTION FILED BY MR. MRINMOI CHATTERJEE, ADV.)

WITH

INTERLOCUTORY APPLICATION D.NO. 95540/2024

(APPLICATION FOR INTERVENTION APPLICATION ON BEHALF OF THE APPLICANT UNDER
THE PETITION ABOVE NAMED)

WITH

INTERLOCUTORY APPLICATION NO. 110011/2024

(APPLICATION FOR APPROPRIATE DIRECTIONS)

WITH

INTERLOCUTORY APPLICATION NO. 110039/2024

(APPLICATION SEEKING EXEMPTION FROM FILING SECOND ORIGINAL COPY OF
NEWSPAPER COMPILATION)

WITH

INTERLOCUTORY APPLICATION NO. 110768/2024

(APPLICATION FOR INTERVENTION)

WITH

INTERLOCUTORY APPLICATION NO. 110769/2024

(APPLICATION FOR DIRECTION)

WITH

INTERLOCUTORY APPLICATION NO. 132997 & 132998 /2024

(APPLICATION FOR IMPEADMENT AS PARTY RESPONDENT ALONG WITH DIRECTION)

WITH

INTERLOCUTORY APPLICATION NO. 135334 AND 137201/2024

(APPLICATION FOR INTERVENTION AND DIRECTION FILED BY MR. S. S.
SHROFF, ADV.)

WITH

INTERLOCUTORY APPLICATION NO. 133537 & 139081/2024

(APPLICATION FOR INTERVENTION AND DIRECTION FILED BY MR. VIKAS MEHTA,
ADV.)

WITH

INTERLOCUTORY APPLICATION NO. 133673 & 133550/2024

(APPLICATION FOR INTERVENTION AND MODIFICATION FILED BY MS. SHWETA SINGH
PARIHAR, ADV.)

WITH

INTERLOCUTORY APPLICATION NO. 133899 & 140252/2024

(APPLICATION FOR INTERVENTION AND DIRECTION FILED BY MRS. M/S KHAITAN &
Co., ADV.)

WITH

INTERLOCUTORY APPLICATION D. NO. 139085 & 139206 /2024

(APPLICATION FOR INTERVENTION AND MODIFICATION FILED BY M/S KHAITAN & CO.,
ADV.)

INTERLOCUTORY APPLICATION D. NO. 166475 & 166477 /2024

(APPLICATION FOR INTERVENTION AND DIRECTION FILED BY MR. AYSHWARYA
CHANDAN, ADV.)

WITH
INTERLOCUTORY APPLICATION NO.117836, 142959, 143229, 155193, 159883 187046
& 234824 /2024

(APPLICATION FOR EXEMPTION FROM FILING OFFICIAL TRANSLATION)

WITH
INTERLOCUTORY APPLICATION NO. 188151/2024
(APPLICATION FOR PERMISSION TO FILE ADDITIONAL DOCUMENTS)

INDIAN MEDICAL ASSOCIATION & ANR.

..Petitioner (s)

-VERSUS-

UNION OF INDIA & ORS.

..Respondent (s)

OFFICE REPORT

The matter above mentioned was listed before Hon'ble Court on 27.08.2024 with office report dated 22.08.2024.

"Copy of record of proceeding dated dated 27.08.2024 is enclosed with this office report."

It is submitted that pursuant to aforesaid order, certified copies has been sent to all the parties and copy of order has also been sent to counsel through e-mail.

A.) Ref. Para 1 of Hon'ble Court's order dated 27.08.2024

It is submitted that counsel for respondent no. 49 (i.e. Dr. R. V. Asokan) has on 04.10.2024 filed Compilation in form of affidavit (in both form i.e. Scanned Copy and compilation of original news papers). Copy of the same is being circulated with this office report.

Service position of notice issued on 01.05.2024 & 13.05.2024 as per Hon'ble Court's order dated 23.04.2024 and document filed on behalf of respondent till 14.10.2024 is tabulated below:

Sl .No.	Respondent No.	Name of Ministry/State Licensing Authority	Service position	V/A	Affidavit	Remarks
1	8	State of Uttarakhand	Complete	Ms. Vanshaja Shukla, Adv.	Filed on 22.08.2024a long with I.A. No. 187046/2024 (Application for exemption from filing O.T.), Copy circulated	
2	9	Ministry of Consumer Affairs, Food and Public Distribution	Complete as notice already accepted	Mr. Amrish Kumar, Adv.	Filed on 06.05.2024 , Copy included	Filed Additional affidavit on 28.08.2024 in terms of order dated 30.07.2024 , copy included
3	10	Ministry of Electronics and Information	Complete as notice already accepted	-	-	Notice accepted vide order dated 23.04.24. But no Vakalatnam a and counter affidavit has been filed so far.
4	11	Department of Food and Public Distribution , Ministry of Consumer Affairs	Complete as notice accepted	-	-	

5	12	Ministry of Information and Broadcasting	Complete as notice accepted	Mr. Amrish Kumar, Adv.	Filed on 06.05.2024 , Copy included	Additional affidavit in terms of order dated 09.07.2024, 30.07.2024, defective as page no. of annexure has not been mentioned in the body of counter affidavit, AS the matter is on board, copy of the same is being circulated
6	13	National Medical Commission	Complete on 03.05.2024	Mr. Prateek Bhatia, Adv.	Filed on 14.05.24, copy included	
7	14	State of Andhra Pradesh	Complete on 06.05.2024	Mr. Guntur Pramod Kumar, Adv. on 02.08.2024	Filed on 13.08.2024, copy included	
8	15	State of Arunachal Pradesh	Complete on 06.05.2024	Mr. Abhimanyu Tewari, Adv. on 29.08.2024	Filed on 29.08.2024, copy included	
9	16	State of Assam	Complete on 06.05.2024	Ms. Diksha Rai, Adv. on 27.07.2024	Filed on 23.08.2024, circulated	
10	17	State of Bihar	Complete on 06.05.2024	Mr. Prem Prakash, Adv. on 03.06.2024	Filed on 10.07.2024, included	

11	18	State of Chhattisgarh	Complete on 08.05.2024	Ms. Ankita Sharma, Adv. on 01.07.2024	Filed on 08.07.24, copy included	Additional affidavit filed on 28.08.2024, in terms of order dated 30.07.2024, copy included
12	19	State of Goa	Complete	Ms. Surbhi Kapoor, Adv. on 10.06.2024	Filed on 12.06.24, copy included	Compliance affidavit filed on 13.09.2024, copy circulated
13	20	State of Gujarat	Complete	Ms. Swati Ghildiyal, Adv. has on 10.05.2024	Filed on 04.07.24, copy included	Compliance affidavit filed on 11.10.2024, copy circulated
14	21	State of Haryana	Complete on 06.05.2024	Mr. Samar Vijay Singh, Adv. Has on 09.08.2024	Filed on 28.08.2024, copy included	
15	22	State of Himanchal Pradesh	Complete on 06.05.2024	Mr. Akshay Girish Ringe, Adv. on 10.07.2024	Filed on 24.07.2024, copy included	
16	23	State of Jharkhand	Completed	Ms. Pallavi Langar, Adv. has on 06.05.2024	Filed on 06.07.2024, copy included	Supplementary affidavit on 28.08.2024, copy included
17	24	State of Karnataka	Complete on 06.05.2024	Dr. D.L. Chidananda, Adv. on 18.05.2024	Filed on 18.06.2024, copy included	Filed Affidavit on 28.08.2024, in terms of order dated 30.07.2024, copy

						included
18	25	State of Kerala	Complete on 04.05.2024	Mr. Nishe Ranjan Sonkar, Adv. filed on 31.07.2024	Filed on 31.07.2024, copy included	Compliance affidavit filed on 21.09.2024 but the same has not been served to Ld. Amics Curiae (copy circulated)
19	26	State of Madhya Pradesh	Complete on 06.05.2024	Ms. Mrinal Elker Mazumdar, Adv has on 06.07.2024	Filed on 06.07.24, copy included	Compliance report on 28.08.2024, copy included
20	27	State of Maharashtra	Complete on 06.05.2024	Mr. Aaditya A. Pande, Adv. on 15.05.2024	Filed on 03.07.24, copy included	
21	28	State of Manipur	Completed	Mr. Pukhrambam R. Kumar ,Adv. has On 10.05.2024	Filed on 08.07.24, copy included	Additional affidavit in terms of order dated 14.05.2024. The same has not been served to Ld. Amicus Curiae (Copy included)
22	29	State of Meghalaya	Complete on 08.05.2024	Mr. Avijit Mani Tripathi, Adv. on 31.07.2024	Filed on 31.07.2024, copy included	
23	30	State of Mizoram	Complete on 09.05.2024	Mr. Anando Mukherjee, Adv. on 17.05.2024	Filed on 31.07.2024, copy included	
24	31	State of Nagaland	Complete on 10.05.2024	Ms. K. Enatoli Sema, Adv. on 15.05.2024	Filed on 15.05.24 and copy included	Seperate Compliance affidavit filed on 01.07.2024, copy included

25	32	State of Orissa	Complete on 04.05.2024	Ms. Srisatya Mohanty, Adv.	Filed on 03.07.2024, Copy included	
26	33	State of Punjab	Complete	Mr. Nupur Kumar, Adv. on 16.07.2024	Filed on 29.07.2024, copy included	Affidavit in reply on 28.08.2024, copy included
27	34	State of Rajasthan	Complete on 04.05.2024	Ms. Nidhi Jaiswal, Adv on 26.06.2024	Filed on 31.07.2024, copy included	Additional affidavit filed on 28.08.2024, copy included
28	35	State of Sikkim	Complete on 09.05.2024	Mr. Sameer Abhynakar on 07.08.2024	-	
29	36	State of Tamil Nadu	Complete on 04.05.2024	Mr. Sabarish S., Adv. on 10.07.2024	Filed on 10.07.2024, Copy of the same has already been circulated	1. Additional Affidavit filed on 31.07.2024, copy included 2. Additional counter affidavit filed on 06.09.2024, copy circulated
30	37	State of Telangana	Complete on 04.05.2024	Mr. Sarvan Kumar Karanam, Adv on 15.05.2024	Filed on 27.06.2024, copy included	
31	38	State of Tripura	Complete on 07.05.2024	Mr. Shuvodeep Roy, Adv. On 29.07.2024	Filed on 31.07.2024, copy included	

32	39	State of Uttar Pradesh	Complete on 06.05.2024	Ms. Sakshi Kakkar, Adv. on 28.05.2024	Filed on 08.07.2024, copy included	Filed Affidavit on 14.10.2024 along with application for exemption from filing O.T. (IA. No. 234824 of 2024), Copy circulated
33	40	State of West Bengal	Complete on 04.05.2024	Ms. Astha Sharma, Adv. has on 11.05.2024	a) Filed on 13.05.2024 b) Filed on 06.07.2024	a) Defective as not served to all the parties (copy included) b) copy included
34	41	Union Territory of Andman & Nicobar	Complete	Mr.S.N. Terdal, Adv. on 28.06.2024	Filed on 27.06.2024, copy included	
35	42	Union Territory of Dadar Nagar Haveli & Daman and Diu	Complete	Mr. M.K.Maroria, Adv. On 14.05.2024	-	
36	43	Union Territory of Jammu & Kashmir	Complete on 10.05.2024	Mr. P. N. Razdan, Adv. on 28.08.2024	Filed on 28.08.2024, copy included	
37	44	Union Territory of Ladakh	Complete on 07.05.2024	Mr. S.N. Terdal, Adv. on 15.07.2024	Filed on 07.08.2024	Filed on 13.09.2024 (Defective as wrong cause title mentioned). As the matter is on board, copy circulated
38	45	Union Territory of Lakshadweep	Complete on 10.05.2024	Mr. S.N. Terdal, Adv. on 07.08.2024	-	
39	46	Union Territory of Puducherry	Complete on 06.05.2024	Mr. Aravindh. S, Adv has on	Filed on 06.07.2024, copy included	Affidavit filed on

			24	13.05.2024		01.10.2024 , copy circulated
40	47	Union Territory of Chandigarh	Complete on 16.05.20 24	Mr.S.N. Terdal, Adv. on 04.07.2024	Filed on 10.07.2024, copy included	
41	48	Union Territory of New Delhi	Complete on 03.05.20 24	Mr. Mukesh Kumar Maroria, Adv. has on 06.05.2024	Filed on 11.06.24, copy included	

Service of notice is complete on all respondents and position is below-

- (i) respondent nos. 1 to 9 and 12 to 49 are already appeared through advocate.
- (ii) Notice has already been accepted on behalf of respondent no. 10 and 11 vide order dated 23.04.2024.

It is submitted that counsel for respondent no. 1 has filed two affidavits

- (i) Filed affidavit in terms of order dated 30.07.2024 which is defective as page no. annexures not mentioned in the body of affidavit. As the matter is on board, copy of the same is being circulated.
- (ii) Filed additional affidavit in terms of order dated 27.08.2024 for clarification. Copy of the same is being circulated.

It is submitted that no further document has been filed in the instant matter so far after the aforesaid order.

The matter above-mentioned along with applications is listed before the Hon'ble Court with this revised office report.

Dated this the 15th day of October, 2024.

ASSISTANT REGISTRAR

Copy to :-

1. Mr. Amarjeet Singh, Advocate
2. Mr. Gautam Talukdar, Advocate
3. Mr. Jitin Chaturvedi, Advocate
4. Mr. G.S. Makker, Advocate
5. Ms. Mrinmoi Chatterjee, Advocate
6. Mr. Amrish Kumar, Advocate
7. Ms. Vanshaja Shukla, Advocates
8. Mr. Mursalin Asijit Shaikh, applicant-in-person
9. Ms. Aparna Bhat, Adv.
10. Ms. Pallavi Langar, Adv.

11. Mr. Mukesh Kumar Maroria, Adv.
12. Dr. Anindita Pujari, Adv.
13. Ms. Swati Ghildiyal, Adv.
14. Mr. Pukhrambam Ramesh Kumar ,Adv.
15. Ms. Astha Sharma, Advocate
16. Mr. Aravindh. S, Advocate
17. Mr. Sarvan Kumar Karnam, Adv.
18. Mr. Aaditya A. Pandey,Adv.
19. Mr. Prashant Singh, Adv.
20. Mr. Anando Mukherjee, Adv.
21. Dr. D.L. Chidananda, Adv.
22. Ms. Sakshi Kakkar, Adv.
23. Mr. Gaurav Sharma, Adv.
24. Mr. Prem Prakash, Adv.
25. Mr. Surbhi Kapoor, Adv.
26. Mr. S.N. Terdal, Adv.
27. Ms. Sakshi Kakkar, Adv.
28. Ms. Nidhi Jaiswal, Adv.
29. Ms. Mrinal Elker Mazumdar, Adv.
30. Ms. Pallavi Langar, Adv.
31. Ms. Sakshi Kakkar, Adv.
32. M/s Khaitan & Co, Adv.
33. Mr. S. S. Shroff, Adv.
34. Mr. Vikas Mehta, Adv.
35. Ms. Mrinal Elker Mazumdar, Adv.
36. Ms. Shweta Singh Parihar, Adv.
37. M/s Karanjawala & Co., Adv.
38. Ms. K. Entaoli Sema,Adv.
39. Mr. Sabarish Subramanian, Adv.
40. Ms. Nupur Kumar, Adv.
41. Ms. Diksha Rai, Adv.
41. Mr. Shuvodeep Roy, Adv.
42. Mr. Avijit Mani Tripathi, Adv.
43. Mr. Guntur Pramod Kumar, Adv.
44. Mr. Ayshwarya Chandar, Adv.
45. Mr. Sameer Abhyankar, Adv.
46. Mr. Samar Vijay Singh, Adv.
47. Mr. Abhimanyu Tewari, Adv.

ASSISTANT REGISTRAR

***Note 1-**

Details of Interlocutory Applications /Affidavits/Reply/ Misc. Doc. Etc. filed in W.P. (c) no. 645 of 2022 is enclosed with this office report.

***Note 2-**

Segregation of documents in Scanned Paper Book-

Sl. NO.	Parts	Description
1	Part-A/Part-I	Main Writ Petition, Documents filed on behalf of petitioner and respondent no. 1 to 8
2	Part-B/Part- II	Interlocutory applications
3	Part-C/Part-III	Documents filed on behalf of respondent no. 9 to 49

**DETAILS OF INTERLOCUTORY APPLICATIONS /AFFIDAVITS/REPLY/
MISC. DOC. ETC. FILED IN W.P. (C) NO. 645 OF 2022**

Sl. No .	Code	Interlocutory Application No.	Particulars of I.A.	Filed By	Filed on	Disposed on
1	I- 1	130554/2022	Application Seeking Clarification /Direction of this Hon'ble Court in Compliance of the order dated 26.08.2022	Mr. Gautam Talukdar, Adv. (Counsel for R.No. 5 to 7)	07.09.2022	--
2	I-2	13659/2023	Application for Intervention	Ms. Mrinmoi Chatterjee, Adv.	18.01.2023	--
3	I-3	52679/2024	Application for permission to withdraw the Additional Affidavit Filed on 05.02.2024	Mr. G.S. Makker, Adv. (Counsel for respondent no. 1)	28.02.2024	Disposed of vide Hon'ble Court's order dated 19.03.2024
4	I-4	77726/2024	Application seeking permission for virtual appearance on behalf of the respondent no. 6 with affidavit	Mr. Gautam Talkudar, Adv.	01.04.2024	Allowed vide Hon'ble Court's order dated 30.04.2024
5	I-5	78328/2024	Application seeking permission for virtual appearance on behalf of the proposed contemnor with affidavit	Mr. Gautam Talkudar, Adv.	01.04.2024	Allowed vide Hon'ble Court's order dated 30.04.2024
6	I-6	81066/2024	Application under order 1 Rule 10(2) and Section 151 of the Code of Civil Procedure for Impleadment of Jaideep Bihani as a petitioner in the present petition	Mr. Amarjit Singh Bedi, Adv.	03.04.2024	Dismissed vide Hon'ble Court's order dated 10.04.2024
7	I-7	D.No. 95540 of 2024	Intervention Application on behalf of the applicant under the petition abovenamed	Mr. Mursalin Asijit Shaikh, PIP	19.04.2024	

8	I-8	D.No. 109770 of 2024	Application on behalf of the applicant under the petition above named	Mr. Mursalin Asijit Shaikh, Petitioner-in-person	04.05.2024	Lodged under Order XV Rule 5 of Supreme Court Rules, 2013 vide Ld. Registrar's order dated 06.05.2024
9	I-9	110039 of 2024	Application seeking exemption from filing second original copy of newspaper compilation	Mr. Gautam Talkudar, Adv.	04.05.2024	
10	I-10	110011 of 2024	Application for appropriate directions	Mr. Gautam Talkudar, Adv.	04.05.2024	
11	I-11	110768 & 110769 of 2024	Application for Intervention along with application for direction	Ms. Aparna Bhat, Adv	06.05.2024	
12	I-12	132997 of 2024	Application for Impleadment	M/s Karanjwala & Co.	14.06.2024	
13	I-13	132998 of 2024	Application for Direction	M/s Karanjwala & Co.	14.06.2024	`
14	I-14	133534 of 2022	Application for Intervention	Mr. Shradul S. Shroff	18.06.2024	
15	I-15	137201 of 2024	Application for modification and directions	Mr. Shradul S. Shroff	01.07.2024	
16	I-16	133537 of 2024	Application for Intervention by Broadband India Forum	Mr. Vikas Mehta	18.06.2024	
17	I-17	139081 of 2024	Application for Directions by Boradband India Forum	Mr. Vikas Mehta	03.07.2024	
18	I-18	133673 of 2024	Application for Intervention (Indian News Paper Society)	Ms. S.S. Parihar, Adv.	18.06.2024	
19	I-19	133550 of 2024	Application for Direction (Indian News Paper Society)	Ms. S.S. Parihar, Adv.	18.06.2024	
20	I-20	133899 of 2024`	Application for Intervention (For ISA)	M/s Khaitan & Co., Adv.	19.06.2024	

21	I-21	140252 of 2024	Application for Modification (For ISA)	M/s Khaitan & Co., Adv.	04.07.2024	
22	I-22	139085 of 2024	Application for Intervention	M/s Khaitan & Co., Adv.	03.07.2024	
23	I-23	139206 of 2024	Application for Direction	M/s Khaitan & Co., Adv.	03.07.2024	
24	I-24	166475 & 166477 of 2024	Application for Intervention along with application for direction	Mr. Ayshwarya Chandar, Adv.	31.07.2024	
25	I-25	188151/2024	Application permission to file additional documents	Ms. Shweta Singh Parihar	23.08.2024	

Affidavits and Misc. Documents

Sl.No.	Code	Affidavit/Reply/Misc. Doc.	Particulars of Affidavit/Reply/Misc. Doc.	Filed By Mr. M. K. Maroria, Adv.	Filed on	Remarks
1.	A-1	Counter Affidavit	Counter Affidavit on behalf of R.No. 3	Mr. Jitin Chaturvedi, Adv. (Counsel for R.No. 3)	23.12.2022	
2.	A-2	Counter Affidavit	Counter Affidavit on behalf of R.No. 5 along with I.A. no. 16915 of 2023 (Application for Exemption from filing official translation)	Mr. Gautam Talukdar, Adv. (Counsel for R.No. 5 to 7)	04.01.2023	
3.	A-3	Counter Affidavit	Counter Affidavit on behalf of R.No. 4	Mr. Amrish Kumar, Adv. (Counsel for R.No. 4)	20.03.2023	
4.	A-4	Rejoinder Affidavit	Rejoinder to the counter affidavit of R.No. 4	Mr. Amarjeet Singh, Adv. (Counsel for petitioner)	09.10.2023	
5.	A-5	Rejoinder Affidavit	Rejoinder to the counter affidavit of R.No. 5	Mr. Amarjeet Singh, Adv. (Counsel for petitioner)	09.10.2023	

6.	A-6	Additional Affidavit (Doc. No. 32637/2024)	Additional Affidavit on behalf of R.No. 1	Mr. G.S. Makker, Adv. (Counsel for R.No. 1)	07.02.2024	Withdrawn vide order dated 19.03.2024 in I.A. No. 52679 of 2024
7.	A-7	Counter Affidavit	Counter Affidavit on behalf of R.No. 1 along with I.A. No. 78630 of 2024 (Application for Exemption from filing official translation)	Mr. G.S. Makker, Adv.	19.03.2024	
8.	A-8	Affidavit	Affidavit in reply in compliance of the order dated 27.02.2024 on behalf of the Respondent No. 6	Mr. Gautam Talukdar, Adv.	20.03.2024	
9.	A-9	Affidavit	Affidavit in reply to show cause notice dated 21.03.2024 on behalf of the proposed contemnor- Swami Ramdev	Mr. Gautam Talukdar, Adv.	02.04.2024	Included in writ petition paper books from P. No. 68 (1-3)
10.	A-10	Affidavit	Affidavit in reply on behalf of respondent no. 5 & 6 in compliance of the orders dated 27.02.2024, 19.03.2024 and 02.04.2024	Mr. Gautam Talukdar, Adv.	08.04.2024	
11.	A-11	Affidavit	Affidavit in reply on behalf of respondent no. 7 in compliance of the orders dated 19.03.2024 and 02.04.2024	Mr. Gautam Talukdar, Adv.	08.04.2024	
12.	A-12	Affidavit	Affidavit in reply on behalf of the State Licensing Authority, Uttarakhand in compliance or order dated 02.04.2024 of this Hon'ble Court along with I.A. No. 86162 of 2024 (Application for Exemption from filing official translation)	Ms. Vanshaja Shukla, Adv. (Counsel for respondent no. 8)	09.04.2024	
13.	A-13	Additional Affidavit	Additional Affidavit on behalf of R.No. 1	Mr. G.S. Makkar, Adv. (Counsel for respondent no. 8)	09.04.2024	
14.	A-14 (i)	Additional Affidavit	Additional affidavit on behalf of respondent no. 5 (Volume-I)	Mr. Gautam Talukdar, Adv.	25.04.2024	

15.	A-14 (ii)	Additional Affidavit	Additional affidavit on behalf of respondent no. 5 (Volume-II)	Mr. Gautam Talukdar, Adv.	25.04.2024	
16.	A-14 (iii)	Additional Affidavit	Additional affidavit on behalf of respondent no. 5 (Volume-III)	Mr. Gautam Talukdar, Adv.	25.04.2024	
17.	A-15	Additional Affidavit	Additional affidavit on behalf of respondent no. 6	Mr. Gautam Talukdar, Adv.	25.04.2024	
18.	A-16	Additional Affidavit	Additional affidavit on behalf of respondent no. 7	Mr. Gautam Talukdar, Adv.	25.04.2024	
19.	A-17	Affidavit	Further affidavit on behalf of the State Licensing Authority, Uttarakhand in compliance of order dated 10.04.2024 of this Hon'ble Court along with I.A. No. 103573 of 2024 (Application for Exemption from filing official translation)	Ms. Vanshaja Shukla, Adv. (Counsel for respondent no. 8)	29.04.2024	I.A. No. 103573 of 2024 allowed vide Hon'ble Court's order dated 30.04.2024
20.	A-18	Affidavit	Compliance affidavit of Dr. Swastik Suresh, Drug Inspector/District Ayurvedic and Unani Officer, Haridwar, Uttarakhand, in compliance of order dated 10.04.2024 of this Hon'ble Court along with I.A. No. 103615 of 2024 (Application for Exemption from filing official translation)	Ms. Vanshaja Shukla, Adv. (Counsel for respondent no. 8)	29.04.2024	I.A. No. 103615 of 2024 allowed vide Hon'ble Court's order dated 30.04.2024
21.	A-19	Affidavit	Compliance affidavit of Dr. Rajeev Kumar Verma (Retired) District Ayurvedic and Unani Officer, Dehradun, Uttarakhand, in compliance of order dated 10.04.2024 of this Hon'ble Court along with I.A. No. 103690 of 2024 (Application for Exemption from filing official translation)	Ms. Vanshaja Shukla, Adv. (Counsel for respondent no. 8)	29.04.2024	I.A. No. 103690 of 2024 allowed vide Hon'ble Court's order dated 30.04.2024
22.	A-20	Affidavit	Compliance affidavit of Dr. Girish Chandra Jangpangi, Drug Inspector/District Ayurvedic and Unani Officer, Dehradun, Uttarakhand, in compliance	Ms. Vanshaja Shukla, Adv. (Counsel for respondent no. 8)	29.04.2024	I.A. No. 103838 of 2024 allowed vide Hon'ble Court's order dated

			of order dated 10.04.2024 of this Hon'ble Court along with I.A. No. 103838 of 2024 (Application for Exemption from filing official translation)			30.04.2024
23.	A-21	Compliance Affidavit	Compliance affidavit of Dr. Vinay Kumar Sharma (Retired) District Ayurvedic and Unani Officer, Haridwar, Uttarakhand, in compliance of order dated 10.04.2024 of this Hon'ble Court along with I.A. No. 103841 of 2024 (Application for Exemption from filing official translation)	Ms. Vanshaja Shukla, Adv. (Counsel for respondent no. 8)	29.04.2024	I.A. No. 103841 of 2024 allowed vide Hon'ble Court's order dated 30.04.2024
24.	A-22	Affidavit	Affidavit of Dr. R.V. Asokan, National President, Indian Medical Association	Mr. Amarjeet Singh, Adv.	13.05.2024	
25.	A-23	Affidavit	Additional Affidavit on behalf of State of Uttarakhand/State Licensing Authority, Uttarakhand along with I.A. No. 117836 of 2024 (Application for Exemption from filing official translation)	Ms. Vanshaja Shukla, Adv. (Counsel for respondent no. 8)	13.05.2024	
26.	A-24	Affidavit	Additional Affidavit on behalf of respondent no. 5	Mr. Gautam Talukar, Adv.	17.05.2024	
27.	A-25	Affidavit	Affidavit on behalf of Respondent No. 2 in compliance of order dated 07.05.2024	Mr. Amish Kumar, Adv.	08.07.2024	
28.	A-26	Affidavit	Additional Affidavit on behalf of State of Uttarakhand along with I.A. No. 143229 of 2024	Ms. Vanshaja Shukla, Adv	08.07.2024	
29.	A-27	Affidavit	Additional affidavit of Dr. R.V. Asokan, National President of IMA	Mr. Amarjeet Singh, Adv.	08.07.2024	
30.	A-28	Affidavit	Additional affidavit on behalf of R.No. 3/ ASCI	Mr. Jitin Chaturvedi, Adv	08.07.2024	
31.	A-29	Affidavit	Additional Affidavit on behalf of State of Uttarakhand along with I.A. No. 155193 of 2024	Ms. Vanshaja Shukla, Adv.	20.07.2024	

32.	A-30	Affidavit	Additional Affidavit on behalf of R.No. 5 along with I.A. No. with I.A. No. 159883 of 2024	Mr. Gautam Talukdar, Adv.	25.07.2024	
33.	A-31	Reply	Reply on behalf of the Petitioner No. 1 to the Additional Affidavit dated 05.07.2024 filed by the State of Uttarakhand	Mr. Amarjeet Singh, Adv.	29.07.2024	
34.	A-32	Additional Affidavit	Short additional affidavit on behalf of Respondent No. 3	Mr. Jitin Chaturvedi, Adv.	29.07.2024	
35.	A-33	Affidavit	Additional affidavit on behalf of State of Uttarakhand	Ms. Vanshaja Shukla, Adv.	31.07.2024	
36.	A-34	Affidavit	Additional affidavit on behalf of State of Uttarakhand along with I.A. No. 171013 of 2024	Ms. Vanshaja Shukla, Adv.	05.08.2024	
37.	A-35	Affidavit	Compliance affidavit on behalf of Respondent no. 8/ State Licensingh Authority, Uttarakhand with I.A. No. 187046 of 2024	Ms. Vanshaja Shukla, Adv.	22.08.2024	
38.	A-36	Affidavit	Affidavit in terms of order dated 30.07.2024 on behalf of R.No. 1	Mr. G.S. Makker, Adv.	28.08.2024	
39.	A-37	Affidavit	Additional affidavit in terms of order dated 27.08.2024 for Clarification	Mr. G.S. Makker, Adv.	14.10.2024	
40.	M-1	Compilation	Compilation on behalf of petitioner	Mr. Amarjeet Singh, Adv.	19.03.2024	
41.	M-2(i)	Compilation	Compilation of publications carrying unconditional public apologies dated 22.04.2024 (Volume-I)	Mr. Gautam Talukdar, Adv.	25.04.2024	
42.	M-2(ii)	Compilation	Compilation of publications carrying unconditional public apologies dated 22.04.2024 (Volume-I)	Mr. Gautam Talukdar, Adv.	25.04.2024	
43.	M- 3 (I)	Compilation	Compilation of original publications carrying unconditional public apologies dated 24.04.2024 (Volume-I)	Mr. Gautam Talukdar, Adv.	03.05.2024	

44.	M- 3 (II)	Compilation	Compilation of original publications carrying unconditional public apologies dated 24.04.2024 (Volume-II)	Mr. Gautam Talukdar, Adv.	03.05.2024	
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Documents filed in compliance of Hon'ble Court's order dated 23.04.2024

Sl. No.	Code	Affidavit/ Reply/ Misc. Doc.	Particulars of Affidavit/Reply/Misc. Doc.	Filed By	Filed on	Remarks
1	C-1	Affidavit	Affidavit on behalf of R.No. 9	Mr. Amrish Kumar, Adv.	06.05.2024	
2	C-2	Affidavit	Affidavit in compliance with order dated 23.04.2024 on behalf of R.No. 12	Mr. Amrish Kumar, Adv.	06.05.2024	
3	C-3	Affidavit	Affidavit in terms of order dated 23.04.2024 on behalf of R.No. 1	Mr. G.S. Makker, Adv.	07.05.2024	
4	C-4	Affidavit	Affidavit on behalf of State of West Bengal in compliance of order dated 23.04.2024 (R.No. 40)	Ms. Astha Sharma, Adv.	13.05.2024	
5	C-4A	Affidavit	Affidavit on behalf of State of West Bengal in compliance of order dated 14.05.2024 (R.No. 40)	Ms. Astha Sharma, Adv.	06.07.2024	
6	C-5	Affidavit	Compliance Affidavit on behalf of the State of Nagaland	Ms. K. Enatoli Sema, Adv.	15.05.2024	
7	C-5A	Affidavit	Compliance Affidavit on behalf of State of Nagaland	Ms. K. Enatoli Sema, Adv.	01.07.2024	
8	C-6	Affidavit	Affidavit on behalf of respondent no. 13	Mr. Gaurav Sharma, Adv.	14.05.2024	
9	C-7	Affidavit	Counter Affidavit on behalf of Respondent no. 48	Mr. M.K. Maroria, Adv.	11.06.2024	
10	C-8	Affidavit	Affidavit on behalf of State of Goa	Ms. Surbhi Kapoor, Adv.	12.06.2024	
11	C-9	Affidavit	Affidavit on behalf of State of Karnataka	Mr. D.L. Chidananda, Adv.	18.06.2024	
12	C-10	Affidavit	Counter Affidavit on behalf of State of Telangana	Mr. S.K. Karnam, Adv.	21.06.2024	
13	C-11	Affidavit	Counter Affidavit on behalf of UT of A& N	Mr. S.N. Terdal, Adv.	26.06.2024	

14	C-12	Affidavit	Counter Affidavit on behalf of State of Odisha	Dr. Anindita Pujari, Adv.	03.07.2024	
15	C-13	Affidavit	Affidavit in reply on behalf of State of Maharashtra (R.No. 27)	Mr. Aaditya A. Pande, Adv.	03.07.2024	
16	C-14	Affidavit	Counter Affidavit on behalf of State of Gujarat (R.No. 20)	Ms. Swati Ghildiyal, Adv.	04.07.2024	
17	C-15	Affidavit	Compliance Affidavit on behalf of State Licensing Authority, MP	Ms. Mrinal Elker Mazumdar	06.07.2024	
18	C-16	Affidavit	Affidavit on behalf of R.No. 23- State of Jharkhand	Pallavi Langar, Adv.	06.07.2024	
19	C-17	Affidavit	Affidavit on behalf of U.T. of Puducherry	Mr. Aravindh S., Adv.	06.07.2024	
20	C-18	Affidavit	Affidavit on behalf of State of U.P. (R.No. 39) along with I.A. No. 142959 of 2024 (App. For exemption from filing official translation)	Ms. Sakshi Kakkar, Adv.	08.07.2024	
21	C-19	Affidavit	Affidavit on behalf of Respondent No. 18/State of Chhatisgarh	Ms. Ankita Sharma, Adv.	08.07.2024	
22	C-20	Affidavit	Affidavit filed on behalf of State of Manipur	Mr. P.R. Kumar, Adv.	08.07.2024	
23	C-21	Affidavit	Affidavit of Compliance of order dated 23.04.2024 on behalf of R.No. 47	Mr. S.N. Terdal, Adv.	10.07.2024	
24	C-22	Affidavit	Affidavit on behalf of Respondent No. 17	Mr. Prem Prakash, Adv.	10.07.2024	
25	C-23	Affidavit	Additional Affidavit of Compliance of order dated 07.05.2021 on behalf of R.No. 12	Mr. Amrish Kumar, Adv.	10.07.2024	
26	C-24	Affidavit	Status Report on behalf of R.No. 36	Mr. Sabarish Subramanian, Adv.	10.07.2024	
27	C-24A	Affidavit	Additional Affidavit on behalf of R.No. 36	Mr. Sabarish Subramanian, Adv.	31.07.2024	
29	C-25	Affidavit	Affidavit in Compliance to order dated 07.05.2024	Mr. Akshay Girish Ringe, Adv.	24.07.2024	
30	C-26	Affidavit	Affidavit on behalf of R.No.33	Mr. Nupur Kumar, Adv.	29.07.2024	

31	C-27	Affidavit	Additional affidavit dated 08.07.2024 on behalf of respondent no. 9	Mr. S.N. Terdal, Adv.	10.07.2024	
32	C-28	Affidavit	Affidavit on behalf of State of State of Mizoram	Mr. Anando Mukherjee, Adv.	31.07.2024	
33	C-29	Affidavit	Affidavit on behalf of State of State of Tripura, Adv. (for R.No. 38)	Mr. Shuvodeep Roy, Adv.	31.07.2024	
34	C-30	Affidavit	Compliance report on behalf of State of Kerala (R.No. 25)	Mr. Nishe Ranjan Sonkar, Adv.	31.07.2024	
35	C-31	Affidavit	Counter Affidavit/Reply on behalf of State of Rajasthan	Ms. Nidhi Jaiswal, Adv.	31.07.2024	
36	C-32	Affidavit	Affidavit on behalf of UT of Ladakh	Mr. S.N. Terdal, Adv.	07.08.2024	
37	C-33	Affidavit	Affidavit on behalf of Andhra Pradesh (R.No. 14)	Mr. Guntur Pramod Kumar, Adv.	13.08.2024	
38	C-34	Affidavit	Compliance affidavit on behalf of R.No. 48 (U.T. of Delhi)	Mr. M. K. Maroria, Adv.	17.08.2024	
39	C-35	Affidavit	Affidavit with annexures on behalf of Govt. Of Puducherry	Mr. Aravindh S.	17.08.2024	
40	C-36	Affidavit	Affidavit on behalf of State of Assam	Ms. Diksha Rai, Adv.	23.08.2024	
41	C-37	Affidavit	Affidavit in reply on behalf of Respondent no. 33	Ms. Nupur Kumar, Adv.	28.08.2024	
42	C-38	Affidavit	Supplementary Affidavit on behalf of R.No. 23- State of Jharkhand	Ms. Pallavi Rai, Adv.	28.08.2024	
43	C-39	Affidavit	Additional Affidavit on behalf of the Respondent no. 9 in terms of Hon'ble Court's order dated 30.07.2024	Mr. S.N. Terdal, Adv.	28.08.2024	
44	C-40	Affidavit	Additional Affidavit in compliance with order dated 09.07.2024 and 30.07.2024 on behalf of R.No. 12	Mr. Amrish Kumar, Adv.	28.08.2024	
45	C-41	Affidavit	Additional Affidavit on behalf of State of Rajasthan (R.No. 34)	Ms. Nidhi Jaiswal, Adv.	28.08.2024	
46	C-42	Affidavit	Additional affidavit in compliance of respondent no. 18	Ms. Ankita Shrama, Adv.	28.08.2024	

47	C-43	Affidavit	Compliance affidavit on behalf of R.No. 21	Mr. Samar Vijay Singh, Adv.	28.08.2024	
48	C-44	Affidavit	Affidavit filed on behalf of respondent – State of Karnatka	Mr. D.L. Chidananda, Adv.	28.08.2024	
49	C-45	Affidavit	Compliance report on behalf of SLA, MP	Ms. Mrinal Elker Mazumdar	28.08.2024	
50	C-46	Affidavit	Affidavit on behalf of U.T. of Jammu and Kashmir	Mr. Pashupati Nath Razdan, Adv.	28.08.2024	
51	C-47	Affidavit	Compliance Affidavit on behalf of State of Arunachal Pradesh	Mr. Abhimanyu Tewari, Adv.	29.08.2024	
52	C-48	Affidavit	Additional Affidavit on behalf of State of Manipur in terms of order dated 14.05.2024	Mr. Pukhramam Ramesh Kumar, Adv.	29.08.2024	
53	C-49	Affidavit	Counter affidavit on behalf of R.No. 36	Mr. Sabarish Subramanian , Adv.	06.09.2024	
54	C-50	Affidavit	Affidavit on behalf of UT of Ladakh	Mr. S.N. Terdal, Adv.	13.09.2024	
55	C-51	Affidavit	Compliance affidavit on behalf of R.No. 19	Ms. Surbhi Kapoor, Adv.	13.09.2024	
56	C-52	Affidavit	Compliance affidavit on behalf of State of Kerala	Mr. Nishe Rajen Shonker, Adv.	21.09.2024	
57	C-53	Affidavit	Affidavit on behalf of U.T. of Puducherry	Mr. Aravindh. S	01.10.2024	
58	C-54	Affidavit	Compliance Affidavit on behalf of R.No. 20	Ms. Swati Ghildiyal, Adv.	11.10.2024	
59	C-55(I to IV)	Affidavit	Compilation on behalf of Dr. R.V. Asokan, Adv., National President, IMA (In Four Volumes)	Mr. Amarjeet Singh, Adv.	04.10.2024	
60	C-55 (O) (I toIV)	Affidavit	Affidavit along with Compilation of Original Newspaper (In Four Volumes)	Mr. Amarjeet Singh, Adv.	-	

61	C-56	Affidavit	Affidavit on behalf of State of Uttar Pradesh along with application for exemption from filing O.T. (I.A. No. 234824/2024)	Ms. Sakshi Kakkar, Adv.	14.10.2024	
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Notes by Amicus Curiae

Sl. No.	Code	Affidavit/Reply/Misc. Doc.	Particulars of Affidavit/Reply/Misc. Doc.	Filed By	Filed on	Remarks
1	Z-1	Note	Note dated 29.07.2024 by Amicus Curiae	Mr. Shadan Farasat, Senior Advocate	29.07.2024	

ITEM NO.4

COURT NO.9

SECTION X

S U P R E M E C O U R T O F I N D I A
RECORD OF PROCEEDINGS

WRIT PETITION(S)(CIVIL) NO(S). 645/2022

INDIAN MEDICAL ASSOCIATION & ANR.

PETITIONER(S)

VERSUS

UNION OF INDIA & ORS.

RESPONDENT(S)

(MR. SHADAN FARASAT, LEARNED SR. ADVOCATE WILL ASSIST THE COURT AS AN AMICUS CURIAE 2. MR. MURSALIN ASIJIT SHAIKH, APPLICANT-IN-PERSON WILL APPEAR IN I.A. D.NO. 95540 OF 2024 (APPLICATION FOR INTERVENTION)

IA No. 110039/2024 - APPLICATION FOR PERMISSION
IA No. 133550/2024 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 140252/2024 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 110011/2024 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 132998/2024 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 139081/2024 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 110769/2024 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 130554/2022 - CLARIFICATION/DIRECTION
IA No. 137201/2024 - CLARIFICATION/DIRECTION
IA No. 142959/2024 - EXEMPTION FROM FILING O.T.
IA No. 117836/2024 - EXEMPTION FROM FILING O.T.
IA No. 143229/2024 - EXEMPTION FROM FILING O.T.
IA No. 95540/2024 - INTERVENTION APPLICATION
IA No. 139085/2024 - INTERVENTION APPLICATION
IA No. 13659/2023 - INTERVENTION APPLICATION
IA No. 133899/2024 - INTERVENTION APPLICATION
IA No. 110768/2024 - INTERVENTION APPLICATION
IA No. 133537/2024 - INTERVENTION/IMPLEADMENT
IA No. 133534/2024 - INTERVENTION/IMPLEADMENT
IA No. 132997/2024 - INTERVENTION/IMPLEADMENT
IA No. 133673/2024 - INTERVENTION/IMPLEADMENT
IA No. 139206/2024 - PERMISSION TO FILE APPLICATION FOR DIRECTION)

Date : 27-08-2024 This matter was called on for hearing today.

CORAM :

HON'BLE MS. JUSTICE HIMA KOHLI
HON'BLE MR. JUSTICE SANDEEP MEHTA

Mr. Shadan Farasat, Sr. Adv. (A.C.)
Mr. Abhishek Babbar, Adv.
Ms. Natasha Maheshwari, Adv.
Ms. Niharika Srivastavs, Adv.

For Petitioner(s) Mr. P S Patwalia, Sr. Adv.
Mr. Prabhas Bajaj, Adv.
Mr. Amarjeet Singh, AOR
Mr. Priyanshu Tyagi, Adv.
Mr. Rishav Rai, Adv.

For Respondent(s)

Mr. K. M. Nataraj, A.S.G.
Mr. Sharath Nambiar, Adv.
Mr. Vinayak Sharma, Adv.
Mr. Rajat Nair, Adv.
Mr. Kanu Agrawal, Adv.
Mr. Priya Mishra, Adv.
Mr. Shashank Bajpai, Adv.
Mr. Mukesh Kumar Verma, Adv.
Mr. Vineet Singh, Adv.
Ms. Indira Bhakar, Adv.
Mr. Shreekant Neelappa Terdal, AOR

Ms. Priya Mishra, Adv.
Mr. Mukesh Kumar Maroria, AOR

Mr. Amrish Kumar, AOR
Mr. Krishna Kant Dubey, Adv.

Mr. Gurmeet Singh Makker, AOR
Mr. Ishaan Sharma, Adv.

Mr. Amit Sibal, Sr. Adv.
Ms. Avni Singh, Adv.
Mr. Ankit Handa, Adv.
Mr. Darpan Sachdeva, Adv.
Mr. Vinamra Kopariha, Adv.
Mr. Jitin Chaturvedi, AOR

Mr. Vipin Sanghi, Sr. Adv.
Mr. Balbir Singh, Sr. Adv.
Mr. Simranjeet Singh, Adv.
Mr. Gautam Talukdar, AOR
Mr. Raushal Kumar, Adv.
Ms. Apurbha Dutta, Adv.
Ms. Neha Gupta, Adv.
Ms. Smita Jain, Adv.
Mr. Rishabh Pant, Adv.
Mr. Yajat Gulia, Adv.
Mr. Rohit Gandhi, Adv.
Mr. Naman Tandon, Adv.
Mr. Hargun Singh Kalra, Adv.
Mr. Akshay Joshi, Adv.

Ms. Vanshaja Shukla, AOR
Ms. Ankeeta Appanna, Adv.
Mr. Siddhant Yadav, Adv.
Ms. Rachna Gandhi, Adv.

Mr. Gaurav Sharma, Sr. Adv.
Mr. Prateek Bhatia, AOR
Mr. Dhawal Mohan, Adv.
Mr. Rajesh Raj, Adv.
Mr. Paranjay Tripathi, Adv.

Mr. Guntur Pramod Kumar, AOR
Mr. Samarth Luthra, Adv.

Mr. Nalin Kohli, Sr. Adv.
Ms. Diksha Rai, AOR
Ms. Nimisha Menon, Adv.
Mr. Arijit Dey, Adv.
Ms. Apurva Sachdev, Adv.
Mr. Anshul Malik, Adv.
Ms. Shruti Agrawal, Adv.
Mr. Ayuushman Arora, Adv.

Mr. Anshul Narayan, Adv.
Mr. Prem Prakash, AOR

Ms. Ankita Sharma, AOR
Mr. Arjun D Singh, Adv.

Mr. Abhay Anil Anturkar, Adv.
Mr. Dhruv Tank, Adv.
Mr. Aniruddha Awalgaonkar, Adv.
Ms. Surbhi Kapoor, AOR
Mr. Bhagwant Deshpande, Adv.

Ms. Swati Ghildiyal, AOR
Ms. Devyani Bhatt, Adv.
Ms. Abhipsa Mohanty, Adv.

Mr. Lokesh Sinhal, Sr. A.A.G.
Mr. Samar Vijay Singh, AOR
Mr. Nikunj Gupta, Adv.
Ms. Himanshi Sakhya, Adv.
Ms. Sabarni Som, Adv.
Mr. Fateh Singh, Adv.

Mr. Akshay Girish Ringe, AOR
Ms. Inderdeep Kaur Raina, Adv.
Mr. Kartikeya Rastogi, Adv.

Ms. Pallavi Langar, AOR
Mr. Kumar Anurag Singh, Adv.
Mr. Honey Khanna, Adv.

Mr. D. L. Chidananda, AOR

Mr. Nishe Rajen Shonker, AOR
Mrs. Anu K Joy, Adv.
Mr. Alim Anvar, Adv.

Ms. Mrinal Gopal Elker, AOR
Ms. Chhavi Khandelwal, Adv.
Ms. Shruti Verma, Adv.

Mr. Aaditya Aniruddha Pande, AOR
Mr. Siddharth Dharmadhikari, Adv.
Mr. Bharat Bagla, Adv.
Mr. Sourav Singh, Adv.
Mr. Aditya Krishna, Adv.
Ms. Preet S. Phanse, Adv.
Mr. Adarsh Dubey, Adv.
Mr. Kirti Kumar, Adv.

Mr. Pukhrambam Ramesh Kumar, AOR
Mr. Karun Sharma, Adv.
Ms. Anupama Ngangom, Adv.
Ms. Rajkumari Divyasana, Adv.
Mr. R.Rajaselvan, Adv.

Mr. Amit Kumar, Adv. General, Sr. Adv.
Mr. Avijit Mani Tripathi, AOR
Mr. Aditya S. Pandey, Adv.
Mr. Himanshu Sehrawat, Adv.
Mr. T.K. Nayak, Adv.

Mr. Anando Mukherjee, AOR

Ms. K. Enatoli Sema, AOR
Ms. Limayinla Jamir, Adv.
Mr. Amit Kumar Singh, Adv.
Ms. Chubalemla Chang, Adv.
Mr. Prang Newmai, Adv.

Ms. Anindita Pujari, AOR

Ms. Nupur Kumar, AOR

Mr. Shiv Mangal Sharma, A.A.G.
Mrs. Abhinandini Sharma, Adv.

Ms. Saubhagya Sondriyal, Adv.
Ms. Nidhi Jaswal, AOR

Mr. Rahul Kumar, Adv.
Ms. Ayushi Bansal, Adv.
Mr. Kushagra Aman, Adv.
Mr. Aryan Srivastava, Adv.
Mr. Sameer Abhyankar, AOR

Mr. Sabarish Subramanian, AOR
Mr. C.Kranthi Kumar, Adv.
Mr. Vishnu Unnikrishnan, Adv.
Mr. Naman Dwivedi, Adv.
Mr. Sarathraj B, Adv.
Mr. Danish Saifi, Adv.

Mr. Sravan Kumar Karanam, AOR
Mr. Aniket Singh, Adv.
Ms. Tayade Pranali Gowardhan, Adv.
Mr. Rudroji Rakesh Kumar, Adv.

Mr. Shuvodeep Roy, AOR
Mr. Saurabh Tripathi, Adv.

Mrs. Garima Prasad, Sr. A.A.G.
Ms. Shephalika Srivastava, Adv.
Ms. Sakshi Kakkar, AOR

Ms. Astha Sharma, AOR
Mr. Srisatya Mohanty, Adv.
Mr. Shreyas Awasthi, Adv.
Ms. Ripul Swati Kumari, Adv.

Mr. Aravindh S., AOR

Mr. Mayank Mishra, Adv.
Ms. Ayshwarya Chandar, AOR
Mr. Utsav Saxena, Adv.

Mr. Prasenjit Keswani, Sr. Adv.
Ms. Meghna Mishra, Adv.
Mr. Debmalya Banerjee, Adv.
Mr. Rohan Sharma, Adv.
Mr. Kartik Bhatnagar, Adv.
Ms. Apurva, Adv.
Mr. Agastya Shelat, Adv.
Mr. Anmol, Adv.
Mr. Shreyansh Rathi, Adv.
M/S. Karanjawala & Co., AOR

Ms. Aparna Bhat, AOR
Ms. Mrinmoi Chatterjee , AOR
Mr. Shadan Farasat, AOR

Mr. Arvind P Datar, Sr. Adv. (NP)
Mr. Vivek Reddy, Sr. Adv.
Mr. R Abhishek, Adv.
Ms. Anjali Singh, Adv.
Mr. Basa Mithun Shashank, Adv.
Mr. Vikas Mehta, AOR

Mr. Ankur Sangal, Adv.
Ms. Sucheta Roy, Adv.
Mr. Ankit Arvind, Adv.
Ms. Amrit Sharma, Adv.
Mr. Karun Mehta, Adv.
Ms. Pratiksha Mishra, Adv.
Mr. Shreyas Endupuganti, Adv.
M/S. Khaitan & Co., AOR

Mr. Rakesh Sinha, Adv.
Mr. Anand Shrivastava, Adv.
Mr. Aashish Shrivastava, Adv.
Ms. Deepti Bhardwaj, Adv.
Ms. Shweta Singh Parihar, AOR

Mr. Kapil Sibal, Sr. Adv.
Mr. Tejas Karia, Adv.
Mr. Shashank Mishra, Adv.
Ms. Akshi Rastogi, Adv.
Ms. Aparajita Jamwal, Adv.
Mr. Koshy John, Adv.
Ms. Vedika Rathore, Adv.
Ms. Rithika Mathur, Adv.
Mr. S. S. Shroff, AOR
Mr. Mohit Singh, Adv.

Mr. G.M. Kawoosa, Adv.
Mr. Pashupati Nath Razdan, AOR
Ms. Palak Mittal, Adv.

I.A. D.NO.
95540 OF 2024

Mr. Mursalin Asijit Shaikh (In-Person)

IA No.110768-69/
2024

Ms. Aparna Bhat, Sr. Adv.
Ms. Rajkumari Banju, AOR
Ms. Karishma Maria, Adv.

UPON hearing the counsel the court made the following

O R D E R

1. Mr. P.S. Patwalia, learned Senior Counsel appearing for Dr. R.V. Asokan, states that notice containing an apology has been published in the print version of the Hindu Newspaper in 20 Editions on 23rd August, 2024. The extract of the newspapers filed on behalf of Dr. R.V. Asokan is illegible, inasmuch as the font size is miniscule. Learned counsel for Dr. R.V. Asokan is directed to file a copy of the relevant page of each of the 20 editions of the Hindu Newspaper in which the apology has been published for the perusal of the Court. Needful shall be done within one week with a copy to the other side.

2. Learned *Amicus Curiae* hands over a copy of note for today's proceedings and points out that except for the States of Arunachal Pradesh and Sikkim, Union Territories of Dadra and Nagar Haveli and Daman and Diu and Union Territory of Lakshyadweep, all the other States and Union Territories have complied with the order passed by this Court on 23rd April, 2024, by filing appropriate affidavits. However, only 10 States have complied with the order passed on 30th July, 2024, namely, Andhra Pradesh, Assam, Haryana, Jharkhand, Jammu and Kashmir, Karnataka, Madhya Pradesh, Punjab and Government NCT of Delhi and Uttarakhand. The rest of the States/Union Territories are in non-compliance.

3. Last opportunity of two weeks is granted to the non-compliant

States/Union Territories to file their affidavits in terms of the order passed on 30th July, 2024 with copies furnished to the learned *Amicus Curiae*.

4. Learned *Amicus Curiae* draws the attention of this Court to the affidavit dated 22nd August, 2024, filed by the Ministry of AYUSH in terms of the order passed by this Court on 30th July, 2024, in which it is stated that clarification has been issued in paras 9 and 10 to the effect that the Table referred at para 11 (Table under Rule 158 B II(A) of the Drugs and Cosmetic Rules, 1945¹) is not related to the letter dated 04th July, 2018. It is stated that the letter dated 04th July, 2018 is a clarification issued by the Ministry of AYUSH clarifying the interpretation of the term “pilot study as per relevant protocol” in respect of patent or proprietary Ayurveda, Siddha and Unani drugs.

5. Mr. K.M. Nataraj, learned Additional Solicitor General submits that the letter dated 04th July, 2018 has not diluted any of the existing position under the Rules, 1945 and has only clarified that the term “pilot study” is not to be equated with the term “Clinical trial” which is required for new drugs in terms of the explanation provided under Rule 122DA of the Rules, 1945, as the same is inapplicable to Ayurveda, Siddha and Unani Drugs which are not new drugs and have ancient history of human consumption.

6. We deem it appropriate to direct the Ministry of Ayush to issue a

1 For short ‘the Rules, 1945’

clarificatory letter in terms of the aforesaid affidavit to avoid any ambiguity on the above aspect which shall be circulated to all the State Governments, Departments, Authorities etc. at the earliest.

7. On 30th July, 2024, this Court had expressed an opinion that the Ministry of AYUSH ought to set up a dashboard for all States to furnish the details of the complaints received by them and referred to another State Licensing Authority for appropriate action and the action taken by the concerned State Licensing Authority so that all the data comes in public domain and can be accessed by the consumers. This Court was of the opinion that creation of a dashboard was also help in dealing with the prosecutions under the Drugs and Cosmetics Act, 1940². The State Governments/Union Territories and Central Governments were directed to file affidavits on the aforesaid issue.

8. Mr. K.M. Nataraj, learned Additional Solicitor General submits that some more time would be required for consultation with the State Governments/Union Territories to work out the modalities for creation of a dashboard. It is directed that the entire exercise shall be completed by 26th September, 2024 and an appropriate affidavit shall be filed on or before 30th September, 2024.

9. The above aspect shall be separately examined on the next date.

10. Enclosed with the affidavit filed by the Ministry of AYUSH is a

Notification issued on 01st July, 2024 whereunder, the Drugs (Fourth Amendment) Rules, 2024 have been notified stating that Rule 170 of the Rules, 1945 shall stand omitted. We may note that Rule 170 of the Rules, 1945 as it stood states as follows :

“170. Prohibition of advertisements of Ayurvedic, Siddha or Unani drugs.— (1) The manufacturer or his agent, of Ayurvedic, Siddha or Unani drugs, shall not participate in the publication of any advertisement relating to any drug for the use of diagnosis, cure, mitigation, treatment or prevention of any disease, disorder, syndrome or condition.

(2) The Ayurvedic, Siddha or Unani drug shall be advertised for the purpose other than specified in sub-rule (1) after the allotment of the Unique Identification Number.

(3) The manufacturer of the Ayurvedic, Siddha or Unani drug shall apply for the Unique Identification Number for the advertisement issued or aired before this notification, within the period of three months from the date of the publication of this notification.

(4) The application for advertisement shall be rejected if,

(i) it is incomplete; or

(ii) the intended advertisement does not contain the contact details of the manufacturer; or

(iii) the contents of the advertisement directly or indirectly tantamount to vulgarity or obscenity; or

(iv) it refers to any Ayurvedic, Siddha or Unani drug in terms which suggest or calculated to lead to the use of that drug or medicine for the enhancement of height and dimensions or capacity of performance of male or female sexual organs; or

(v) it depicts photographs or testimonials of celebrities or government officials; or

(vi) it refers to any Government or Autonomous organization of the Government; or

(vii) it gives a false impression about the true character of Ayurvedic, Siddha or Unani drug; or

(viii) it makes a misleading or exaggerated claim about the effectiveness of the said drug.

(5) The application for allotment of the Unique Identification Number for an advertisement shall be submitted in Form 26 E-4 to the State Licensing Authority or Drug Controller specifying therein the claims such as textual references, rationale from the authoritative books, indication(s) or use(s), evidence regarding safety, effectiveness and quality of the drug.

(6) The application fee of rupees one thousand per advertisement shall be deposited along with Form 26E-4 and other supporting documents.

(7) The application for the advertisement shall be submitted to the Licensing Authority of the State where the corporate office of the manufacturer is located, in case the Ayurvedic, Siddha or Unani drug is licensed for manufacturing in more than one State.

(8) The State Licensing Authority shall process the application (if required, in consultation with the concerned technical experts) for disposal within thirty days from the date of receipt of application along with complete information and shall allot Unique Identification Number for the advertisement.

(9) The manufacturer of Ayurvedic, Siddha or Unani drug may appeal to the State AYUSH or Health Secretary for the direction in case the application for allotment of Unique Identification Number under sub-rule (8) is not disposed off within the period of 30 days.

(10) The applicant shall furnish the required information to the Licensing Authority or Drugs Controller as and when called for, failing which the application shall be rejected and the application fee shall stand forfeited.

(11) The State Licensing Authority or Drugs Controller on being satisfied with the application or otherwise, shall record and convey in Form 26 E-5 the recorded contents of advertisement, reasons for rejection of application or any clarification required from the applicant.

(12) The advertisement recorded by the Licensing Authority or Drugs Controller in Form 26 E-5 shall be valid till the date of validity of license to manufacture for sale of that drug and can be renewed thereafter.

(13) An appeal may be filed before the Central Government against the decision of the State Licensing Authority under sub-rule (11) and the order of Central Government shall be final and binding on the appellant and the State Licensing Authority.

(14) The State Government may notify in the Official Gazette the officers of Ayurvedic, Siddha or Unani system to undertake the monitoring of the advertisements of Ayurvedic, Siddha or Unani drugs in the print, electronic, internet and audio-visual media and maintain printed register as well as online register of the advertisements with appropriate entries including those found inappropriate or invalid and action taken against such faulty advertisements and the State Government shall provide information of the advertisements to the Central Government on quarterly basis and also as and when sought by the Central Government.

(15) The State Licensing Authority may suspend or cancel the license of the manufacturer of the Ayurvedic, Siddha or Unani drug as per the provisions of Rule 159, in case the directions given by the said authority is not complied.

(16) The Central Government shall, in the public interest, prohibit any advertisement of the Ayurvedic, Siddha or Unani drugs, by notification in the Official Gazette."

An explanation has been offered in para 12 of the affidavit for issuing the notification which states as follows :

12. That it is further respectfully submitted that in compliance to the direction of the Hon'ble Supreme Court to expedite the steps for notification dated 02nd February, 2024, vide order dated 07.05.2024, Ministry of Ayush has notified omission of Rules 170 and its related forms of the Drugs & Cosmetics Rules, 1945 vide gazette notification no.G.S.R. 360 (E) datd 02.07.2024. A true copy of the Gazette Notification issued by Ministry of Ayush, dated 02.07.2024 is annexed herewith as ANNEXURE R-2.

11. In our opinion, the aforesaid notification flies in the face of the order passed by this Court on 07th May, 2024 wherein it was observed as follows :

"9. Coming to the issue highlighted on the last date of hearing when the Union of India was called upon to explain its letter dated 29th August, 2023 issued by the

Ministry of AYUSH and addressed to all State Governments/Union Territories and Drug Controllers of the Ministry of AYUSH informing that the Ayurvedic Siddha and Unani Drugs Technical Advisory Board had recommended in its meeting that Rule 170 of the Drugs and Cosmetics Rules, 1945 be deleted from the Drugs and Cosmetics Rules, 1945 and pending action on the said recommendation, all authorities were directed not to initiate any action under the said rule, Learned ASG seeks to explain that Rule 170 has been challenged in different proceedings pending before various High Courts including the High Courts of Delhi, Bombay and Kerala. Pursuant to an order dated 01st May, 2023 passed by the High Court of Delhi in a batch of petitions, lead matter being W.P. (C) No.321/2019, directions were issued that any decision taken by the Union of India pursuant to the recommendations made by ASUDTAB shall not be implemented for a period of four weeks from the date of its communication and the said interim arrangement shall continue to operate.

10. It is submitted that thereafter, ASUDTAB had recommended that final notification be issued for omission of Rule 170. The said recommendation was placed before the Ministry of Law and Justice for approval. The Ministry recommended that the final notification should be published within three months, if no objections/suggestions are received and within six months if a large number of objections/suggestions are received on the draft notification.

11. The above development took place in the month of July, 2023. However, the Ministry of AYUSH proceeded to issue the Notification only on 02nd February, 2024, inviting objections to the recommendations/suggestions to the draft notification from all stakeholders within 30 days from the date of the notification being issued in the Official Gazette. Period of 30 days has long since expired but no further steps have been taken by the Ministry of AYUSH. Learned ASG is not in a position to inform us as to how many objections/suggestions were received on the draft notification. The Ministry of AYUSH is directed to expedite steps proposed to be taken by it.

12. In our view, an administrative instruction issued by virtue of the letter dated 29th August, 2023, cannot put on hold Rule 170 of the Drugs and Cosmetics Rules, 1945 so long as it remains enforceable in law.

13. Mr. Natraj, learned Additional Solicitor General submits on instructions that the Ministry shall forthwith withdraw the letter dated 29th August, 2023. Needful shall be done with immediate effect."

12. Instead of withdrawing the letter dated 29th August, 2023, for reasons best known to the Ministry, the Notification dated 01st July, 2024 has been issued to omit Rule 170 from the Rules, 1945 which runs contrary to the very directions issued by this Court.

13. Mr. K.M. Natraj, learned Additional Solicitor General submits that this aspect may be permitted to be explained by the Ministry on an

affidavit. Till further orders, the effect of the Notification dated 01st July, 2024, omitting Rule 170 shall stand stayed. In other words, till further orders are passed, Rule 170 shall remain on the statute book and in force.

14. Learned *Amicus Curiae* next submits that in the affidavit filed by the Ministry of Consumer Affairs, it has been stated that there is no need/requirement to renew the MoU with ASCI after promulgation of the Central Consumer Protection Authority³ under the new Consumer Protection Act, 2019. The Central Authority is empowered to identify instances of misleading advertisements and take *suo motu* action against them. He submits that the affidavit filed by the MCM shows that little action has been taken against misleading advertisements of health and medicinal products with which this Court is concerned. The CCPA is empowered to receive complaints only from a consumer as defined in the Act and not from any third party, who may raise the complaint regarding misleading advertisements even if they are not consumers of the product/drug.

15. The Ministry is required to examine the aforesaid aspect and file its response. While filing a response, it shall also indicate as to how many complaints have been registered till now after constitution of the CCPA based on *suo motu* action taken by the Authority for dealing with misleading advertisements of health and medicinal products. The relevant

3 For short 'the CCPA'

data shall be furnished with not only the Authority taking *suo motu* note of any such misleading advertisements of health and medicinal products but also with the final steps taken to curtail the said tendency of issuing misleading advertisements.

16. In view of the difficulty expressed by learned *Amicus Curiae* of accessing the e-file of this Court, this Court had asked for a report from the Registrar (Technology) in another matter (M.A. Diary No.30408 of 2024 in Civil Appeal No.8402 of 2016). The Computer Cell has submitted a report dated 02nd August, 2024 stating *inter alia* that the Cell has received a list of *Amicus Curiae* and noted that there are 235 cases where *Amicus Curiae* have been appointed by the Supreme Court. Out of these 235 cases, the mobile phone numbers of the concerned *Amicus Curiae* are available only in 35 cases. In-house steps have been taken to coordinate with the software development team to examine the feasibility of providing access to the *Amicus Curiae* through their verified mobile phone numbers and e-mail addresses so as to facilitate them to have access the electronic files of this Court. It is stated that it will take a period of three weeks to complete the process.

17. Subject to orders that may be passed on the administrative side, steps shall be taken to enable the *Amicus Curiae*s appointed by this Court in any matter to access the e-filing portal and further, the Judicial Section shall also take steps that henceforth, whenever an *Amicus Curiae* is

appointed in a matter, the relevant information is conveyed to the Computer Cell for them to take appropriate steps at their end.

18. Compliance report shall be filed in this regard on the next date of hearing fixed in this matter.

19. Learned Additional Solicitor General submits that the Ministry of Information and Broadcasting has filed an affidavit dated 23rd August, 2024 in compliance with the order passed by this Court in para 5 of the Order dated 30th July, 2024 and after the meeting was conducted with all stakeholders, data has been compiled and some suggestions have been made. The said affidavit is not on record. It is stated by learned counsel for the Intervenors that copies of the affidavit have also not been furnished to them so far. Copies shall be furnished to all the applicants. It shall be ensured that the said affidavit is on record for the perusal of the Court on the next date of hearing.

20. List on 15th October, 2024.

(Nand Kishor)
Court Master (NSH)

(Geeta Ahuja)
Assistant Registrar-cum-PS